

Calendar Line 4

Case Name: Michelle Campos v. Autozoners, LLC et al.

Case No.: 24CV433441

This is an action for employment discrimination and harassment brought by plaintiff Michelle Campos (Plaintiff) against defendants Autozoners, LLC (Autozoners), her former employer; Robert Sanchez (Sanchez), a former coworker who did not supervise Plaintiff; and Doe defendants.

The original and still operative complaint, filed in March 2024, alleges nine causes of action: (1) sexual orientation discrimination in violation of the Fair Employment and Housing Act (FEHA) (against Autozoners and Does); (2) sexual orientation harassment in violation of FEHA (against all defendants); (3) failure to prevent discrimination or harassment in violation of FEHA (against Autozoners and Does); (4) retaliation in violation of FEHA (against Autozoners and Does); (5) constructive wrongful termination (against Autozoners and Does); (6) failure to provide rest breaks (against Autozoners and Does); (7) failure to pay wages upon termination (against Autozoners and Does); waiting time penalties (against Autozoners and Does); (8) failure to issue accurate wage statements (against Autozoners and Does); and (9) unlawful business practices (against Autozoners and Does). There are no exhibits attached to the complaint. The complaint alleges that Plaintiff resigned in December 2023. (Complaint, ¶¶ 17, 71.) The complaint was amended to state Autozoners' true name in March 2025. Autozoners filed an amended answer in July 2025.

At issue is Autozoners' motion for summary judgment, opposed by Plaintiff. For the reasons stated here, the court will grant the motion.

GENERAL STANDARDS FOR SUMMARY JUDGMENT

The pleadings limit the issues presented for summary judgment or summary adjudication. Such a motion may not be granted or denied based on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 (*Nieto*).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication will be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an "issue of duty." (Code Civ. Proc., § 437c, subd. (f)(1); *McCaskey v. California State Auto. Ass'n* (2010) 189 Cal.App.4th 947, 975 (*McCaskey*); *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

"A defendant seeking summary judgment must show that at least one element of the plaintiff's cause of action cannot be established, or that there is a complete defense to the cause of action." "The burden then shifts to the plaintiff to show there is a triable issue of material fact on that issue." (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) "There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof." (*Aguilar, supra*, 25 Cal.4th at p. 850.) While the same standards of admissibility govern both sides' supporting evidence, the opposition evidence is liberally construed while the moving

party's evidence is strictly construed. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L'Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037 (*Yanowitz*).)

A reply "shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers." (Code Civ. Proc., § 437c, subd. (b)(4); *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252 (*Nazir*).)

Summary Judgment in FEHA cases

Special rules govern the allocation of the burden of proof on motions for summary judgment in wrongful termination and employment discrimination cases, under both federal and state law. State courts follow the approach taken by federal courts in these cases. (*Moore v. Regents of Univ. of Calif.* (2016) 248 Cal.App.4th 216, 233.) Because direct evidence of discrimination is seldom available, courts use a system of shifting burdens as an aid to the presentation and resolution of such cases both at trial and on a motion for summary judgment. (*Guz v. Bechtel Nat'l, Inc.* (2000) 24 Cal.4th 317, 354-355 (*Guz*).) "California has adopted a three-stage burden-shifting test established by the United States Supreme Court for trying employment discrimination claims that are based on the disparate treatment theory. [Citations.] Under this 'McDonnell Douglas test,' (1) the plaintiff must establish a prima facie case of discrimination; (2) if the plaintiff is successful, the employer must offer a legitimate nondiscriminatory reason for its actions; and (3) if the employer produces evidence on that point, the plaintiff must show that employer's reason was a pretext for discrimination." (*Trop v. Sony Pictures Entertainment, Inc.* (2005) 129 Cal.App.4th 1133, 1144; see also *King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 433.)

When the employer is the moving party, the initial burden rests with the employer to show that no unlawful discrimination occurred. (Code Civ. Proc., § 437c, subd. (p)(2); *Guz*, *supra* at pp. 354-355; *McGrory v. Applied Signal Technology, Inc.* (2013) 212 Cal.App.4th 1510, 1523 (*McGrory*) [employee has no obligation to produce evidence until defendant "has established either the existence of a complete defense or the absence of an essential element of plaintiff's claim."]) The employer may do this by presenting admissible evidence either negating an essential element of the employee's claim, or showing some legitimate, nondiscriminatory reason for the action taken against the employee. (*Caldwell v. Paramount Unified School Dist.* (1995) 41 Cal.App.4th 189, 202-203.)

"Although an employee's evidence submitted in opposition to an employer's motion for summary judgment is construed liberally, it 'remains subject to careful scrutiny.' " (*Featherstone v. Southern California Permanente Medical Group* (2017) 10 Cal.App.5th 1150, 1159.) "The employee's 'subjective beliefs in an employment discrimination case do not create a genuine issue of fact; nor do uncorroborated and self-serving declarations.' " "The employee's evidence must relate to the motivation of the decision makers and prove, by nonspeculative evidence, 'an actual causal link between prohibited motivation and termination.' " (*Ibid.*) A "plaintiff's subjective beliefs in an employment discrimination case do not create a genuine issue of fact; nor do uncorroborated and self-serving declarations."

(*King v. United Parcel Service, Inc.* (2007) 152 Cal.App.4th 426, 433; see also *Doe v. Dept. of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 733.)

DISCUSSION

Autozoners moves for summary judgment on the basis that each cause of action “fails to present triable issues of fact and lacks sufficient evidence to warrant a trial.” (Notice of Motion and Motion at pp. 1:27-2:1.) In the alternative, it seeks summary adjudication of each cause of action. Autozoners addresses the second cause of action first.

Second Cause of Action: FEHA Harassment

The second cause of action consists largely of boilerplate allegations; many made on information and belief only. (See complaint at ¶¶ 36-46.) The only person identified as harassing Plaintiff in the complaint’s general allegations is defendant Sanchez, a former coworker. (*Id.* at ¶¶ 12-14, 16.)

FEHA prohibits employment harassment based on “race, religious creed, national origin,” and other protected categories including “sexual orientation.” (Gov. Code, § 12940, subd. (j)(1); *Aguilar v. Avis Rent A Car System, Inc.* (1999) 21 Cal.4th 121, 129 (*Avis*).) “To establish a prima facie case of [harassment based on] a hostile work environment, [the plaintiff] must show that (1) [plaintiff] is a member of a protected class; (2) [plaintiff] was subjected to unwelcome harassment; (3) the harassment was based on [plaintiff’s] protected status; (4) the harassment unreasonably interfered with [plaintiff’s] work performance by creating an intimidating, hostile, or offensive work environment; and (5) defendants are liable for the harassment.” (*Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581 (*Ortiz*).)

Whether the conduct of alleged harassers was sufficiently severe or pervasive to create a hostile or abusive working environment depends on the totality of the circumstances. Those circumstances may include the frequency of the discriminatory conduct; its severity; whether it is physically threatening or humiliating, or a mere offensive utterance; and whether it unreasonably interferes with an employee’s work performance. Common sense, and an appropriate sensibility to social context, will enable courts and juries to distinguish between simple teasing or roughhousing and conduct that a reasonable person in the plaintiff’s position would find severely hostile or abusive. The plaintiff must prove that the defendant’s conduct would have interfered with a reasonable employee’s work performance and would have seriously affected the psychological well-being of a reasonable employee and that he or she was actually offended. (*Serri v. Santa Clara University* (2014) 226 Cal.App.4th 830, 870 (*Serri*).)

The Legislature altered this analysis in 2019 by declaring that “[a] single incident of harassing conduct is sufficient to create a triable issue regarding the existence of a hostile work environment if the harassing conduct has unreasonably interfered with the plaintiff’s work performance or created an intimidating, hostile, or offensive working environment.” (Gov. Code, § 12923, subd. (b).) “The existence of a hostile work environment depends upon the totality of the circumstances and a discriminatory remark, even if not made directly in the context of an employment decision or uttered by a nondecisionmaker, may be relevant, circumstantial evidence of discrimination. In that regard, the Legislature affirms the decision

in *Reid v. Google, Inc.* (2010) 50 Cal.4th 512 ... in its rejection of the ‘stray remarks doctrine.’ ” (*Id.*, § 12923, subd. (c).) “Harassment cases are rarely appropriate for disposition on summary judgment. In that regard, the Legislature affirms the decision in [*Nazir, supra*] and its observation that hostile working environment cases involve issues ‘not determinable on paper.’ ” (*Id.*, § 12923, subd. (e).)

An employer is not liable for harassment by a non-supervisory coworker if the employer takes “prompt, reasonable and efficacious remedial action.” (*Mathieu v. Norrell Corp.* (2004) 115 Cal.App.4th 1174, 1184 (*Mathieu*), citing Gov. Code, § 12940, subd. (j); see also *Bradley v. California Dept. of Corrections and Rehabilitation* (2008) 158 Cal.App.4th 1612, 1613 (*Bradley*) [“[W]hen harassment is by a non-supervisory employee, an employer’s liability is predicated not on the conduct itself, but on the employer’s response once it learns of the conduct”].) “The most significant immediate measure an employer can take in response to a sexual harassment complaint is to launch a prompt investigation to determine whether the complaint is justified.” (*Swenson v. Potter* (9th Cir. 2001) 271 F.3d 1184, 1193 (*Swenson*); *Mathieu, supra*, at p. 1185.) To fulfill this function, the investigation need not be “perfect”; it is enough that the investigation is a “reasonable” one that is neither “rigged to reach a pre-determined conclusion” nor “otherwise conducted in bad faith.” (*Swenson*, at pp. 1197, 1193, 1196.)

Autozoners has submitted admissible evidence, including: the declaration of Autozoners’ Regional Human Resources Manager Lisa Whitlow (part of Autozoners’ index of evidence); Plaintiff’s signed interview statements dated December 13 and 14, 2023, including a signed statement that she believed she was treated fairly by Whitlow (exhibits 1 and 2 to the index); Sanchez’s signed interview statement dated December 14, 2023 (exhibit 3 to the index); Plaintiff’s deposition testimony (exhibit 14 to the index, authenticated by the declaration of Michael Hoffman); a copy of a corrective action review form (exhibit 4 to the index); and Sanchez’s timecard report (exhibit 13 to the index, authenticated by the declaration of Allen Clark). That evidence shows that after the alleged harassment of Plaintiff by defendant Sanchez on two occasions on or around December 11, District Manager Guillermo Cobarrubias came to the store on December 11 in response to Plaintiff’s phone call. Whitlow came to the store on December 13 and 14. Whitlow interviewed Plaintiff, Sanchez, and three other employees, and reviewed videotape footage as part of her investigation of the incident. The videotape did not confirm Plaintiff’s assertion that Sanchez had held a knife in a threatening manner. Whitlow told Plaintiff that she could work at another store location until the investigation was concluded. Plaintiff declined the offer. Sanchez was suspended with pay after he was interviewed by Whitlow on December 14. When the investigation concluded, Whitlow recommended that Sanchez be terminated. Sanchez was terminated shortly thereafter. The foregoing evidence is sufficient to meet Autozoners’ initial burden to show that it took “prompt, reasonable and efficacious remedial action.” (*Mathieu, supra*, 115 Cal.App.4th at p. 1184.)

When the burden shifts, Plaintiff’s opposition does not raise any triable issue of material fact. The opposition is supported by two declarations, one from Plaintiff’s counsel Andrew Morris (authenticating attached exhibits A through D), and one from Plaintiff. The opposition argues that District Manager Cobarrubias failed to take immediate action against Sanchez on December 11, 2023, and merely alerted human resources of the alleged incidents. But it does not raise a triable issue as to whether Autozoners’ action was sufficiently prompt. An employer’s investigation need not be “perfect”; it is enough that the investigation is a

“reasonable” one that is neither “rigged to reach a pre-determined conclusion” nor “otherwise conducted in bad faith.” (*Swenson, supra*, 271 F.3d at pp. 1197, 1193, 1196.) The investigation began on December 13, shortly after Autozoners was notified.

Plaintiff’s deposition testimony (exhibit A to the Morris decl. at p. 152:13-23) that she felt she was treated unfairly by Whitlow during the interview is contradicted by her signed statement at the time of the interview (Autozoners exhibit 1) and by her own later deposition testimony stating that she agreed that Sanchez should have an opportunity to tell his version of events. Plaintiff testified that it was fair for Whitlow to ask her about what Sanchez said about the incidents. (Ex. A at p. 158:7-13.)

Summary adjudication of the second cause of action for harassment as brought against Autozoners is granted.

First, Fourth, and Fifth Causes of Action: No Adverse Employment Action

Autozoners argues that Plaintiff’s claims for discrimination, retaliation, and wrongful constructive discharge all fail for lack of an essential element—an adverse employment action—because Plaintiff was not fired, transferred, or disciplined, and instead resigned voluntarily.

“The elements for a discrimination claim are: that (1) [the plaintiff] was a member of a protected class, (2) he was qualified for the position he sought or was performing competently in the position he held, (3) he suffered an adverse employment action, such as termination, demotion, or denial of an available job, and (4) some other circumstance suggests discriminatory motive.” (*Guz, supra*, 24 Cal.4th at p. 355.) “[I]n order to establish a prima facie case of retaliation under the FEHA, a plaintiff must show (1) he or she engaged in a ‘protected activity,’ (2) the employer subjected the employee to an adverse employment action, and (3) a causal link [exists] between the protected activity and the employer’s action.” (*Yanowitz, supra*, 36 Cal.4th at 1042.) “The elements of a claim for wrongful discharge in violation of public policy are (1) an employer-employee relationship, (2) the employer terminated the plaintiff’s employment, (3) the termination was substantially motivated by a violation of public policy, and (4) the discharge caused the plaintiff harm.” (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 154.)

Under FEHA, in order to constitute an “adverse employment action,” the subject action must materially affect the terms, conditions, or privileges of employment. (*Yanowitz, supra*, 36 Cal.4th at p. 1050–1052.) An adverse employment action is not limited to “ultimate” employment acts such as a specific hiring, firing, demotion, or failure to promote decision. (*Akers v. City of San Diego* (2002) 95 Cal.App.4th 1441, 1455.) However, the act must result in a substantial adverse change in order to be actionable. Changes that are merely contrary to the employee’s interests or not to the employee’s liking are insufficient. (*Id.*) Further, a mere oral or written criticism of an employee or a transfer into a comparable position does not meet the definition of an adverse employment action under the FEHA. (*Id.* at p. 1457.)

The plaintiff “must demonstrate that he or she has been subjected to an adverse employment action that materially affects the terms, conditions, or privileges of employment.” (*McRae v. Department of Corrections & Rehabilitation* (2006) 142 Cal.App.4th 377, 386 (*McRae*)). “Minor or relatively trivial adverse actions by employers or fellow employees that,

from an objective perspective, are reasonably likely to do no more than anger or upset an employee do not materially affect the terms or conditions of employment.” (*Patten v. Grant Joint Union High School Dist.* (2005) 134 Cal.App.4th 1378, 1387 (*Patten*), disapproved on another ground in *Lawson v. PPG Architectural Finishes, Inc.* (2022) 12 Cal.5th 703, 718, fn. 2 (*Lawson*); see also *McRae, supra*, 142 Cal.App.4th at p. 386 [that an employee is displeased by an employer’s action does not elevate that act to a materially adverse employment action].) This requirement “ ‘guards against both ‘judicial micromanagement of business practices’ [citation] and frivolous suits over insignificant slights.’ ” (*McRae*, at p. 387.) “ ‘Absent this threshold showing, courts will be thrust into the role of personnel officers, becoming entangled in every conceivable form of employee job dissatisfaction.’ ” (*Ibid.*)

The complaint acknowledges that Plaintiff resigned rather than being terminated. The complaint alleges this was a constructive termination, and it is the only adverse employment action by Autozoners that is alleged in the complaint. A constructive termination can serve as an adverse employment action. (*St. Myers v. Dignity Health* (2019) 44 Cal.App.5th 301, 315 [“Constructive discharge, like actual discharge, is a materially adverse employment action.”].)

“Constructive discharge occurs when the employer’s conduct effectively forces an employee to resign. Although the employee may say, ‘I quit,’ the employment relationship is actually severed involuntarily by the employer’s acts, against the employee’s will. As a result, a constructive discharge is legally regarded as a firing rather than a resignation.” (*Turner v. Anheuser-Busch, Inc.* (1994) 7 Cal.4th 1238, 1244-1245 (*Turner*).) “In order to establish a constructive discharge, an employee must plead and prove, by the usual preponderance of the evidence standard, that the employer either intentionally created or knowingly permitted working conditions that were so intolerable or aggravated at the time of the employee’s resignation that a reasonable employer would realize that a reasonable person in the employee’s position would be compelled to resign.” (*Turner, supra*, 7 Cal.4th at p. 1251.) “The conditions giving rise to the resignation must be sufficiently extraordinary and egregious to overcome the normal motivation of a competent, diligent, and reasonable employee to remain on the job to earn a livelihood and to serve his or her employer. The proper focus is on whether the resignation was coerced, not whether it was simply one rational option for the employee.” (*Turner, supra*, 7 Cal.4th at p. 1246.) “In order to amount to a constructive discharge, adverse working conditions must be unusually ‘aggravated’ or amount to a ‘continuous pattern’ before the situation will be deemed intolerable.” (*Id.* at p. 1247.) The essence of the test is whether, under the circumstances, the working conditions are so unusually adverse that a reasonable employee in plaintiff’s position would have felt compelled to resign. (*Ibid.*) “It is the working conditions themselves—not the plaintiff’s subjective reaction to them—that are the sine qua non of a constructive discharge.” (*Simers v. Los Angeles Times Communications LLC* (2018) 18 Cal.App.5th 1248, 1274.)

The complaint alleges that Plaintiff’s workplace became “hostile, offensive and/or abusive” because of “Defendants’ discrimination and/or pervasive harassment of Plaintiff due to her gender/sex/sexual orientation.” (Complaint, at ¶ 17.) It further alleges that “Defendant was substantially motivated to constructively discharge Plaintiff because of her sexual orientation.” (*Id.* at ¶ 32.) As discussed above, Autozoners has established that it did not harass Plaintiff, it terminated Sanchez after conducting a prompt and reasonable investigation, and it is not liable for defendant Sanchez’s harassment.

The complaint alleges that “Defendants” committed retaliation by “ignoring Plaintiff’s complaints and constructively and terminating Plaintiff’s employment specifically due to her complaints and her sex, gender, or sexual identity.” (*Id.* at ¶ 62.) But Autozoners has demonstrated that it did not ignore Plaintiff’s complaints regarding Sanchez.

The fifth cause of action for constructive wrongful termination consists largely of boilerplate allegations. (*Id.* at ¶¶ 68-76.) It makes no mention of wage and hour disputes (including sick leave). It instead alleges that “Defendants,” by “failing to investigate and prevent the harassment on the basis of sex/gender/sexual orientation committed against Plaintiff,” created a hostile and unsafe work environment. (*Id.* at ¶ 72.) Again, Autozoners has demonstrated that it did not fail to investigate Sanchez once Plaintiff complained about him.

Autozoners’ primary evidence in support of its argument on this point is the Whitlow declaration and Plaintiff’s deposition testimony. Whitlow declares that she received an email from Plaintiff late in the evening of December 21, 2023, inquiring about missing paid sick leave hours from her paycheck. Whitlow checked the accuracy of the paid sick days with the payroll department and contacted Plaintiff by phone before 8:00 a.m. the next day (December 22) to inform her there were no missing hours and that she had used all her sick leave. Plaintiff hung up on her. Whitlow then contacted district manager Cobarrubias about those communications. Cobarrubias informed Whitlow that he had received a phone call from Plaintiff that morning stating that she was leaving the store and quitting. Plaintiff sent another email to Whitlow later in the morning of the 22nd stating that she was resigning “because of the hostile work environment. I have been discriminated against several times.” (Whitlow Decl. and Autozoners’ exhibits 5 and 6.) Plaintiff testified at her deposition that the entirety of her harassment claim was the two incidents involving defendant Sanchez in December 2023 that she informed Whitlow about. (Autozoners’ ex. 14 at pp. 103:20-105:22, 140:2-143:5.) Plaintiff testified that she had no further contact with Sanchez after he was suspended, and that she never contacted the police about Sanchez. (Ex. 14 at p. 162:1-18.) When asked if she had any information that would contradict Whitlow’s statement to her prior to her resignation that had exhausted all of her paid sick days prior to December 2023, Plaintiff answered, “no.” When asked if she had any records of when she took sick days, Plaintiff testified that she did not. (Ex. 14 at p. 135:11-19.)

The foregoing evidence is sufficient to meet Autozoners’ initial burden to show that Plaintiff was not constructively discharged, the only adverse employment action alleged in the complaint. The evidence shows that Autozoners did not intentionally create or knowingly permit intolerable working conditions that would compel a reasonable employee to resign. The two incidents involving Sanchez in December 2023 were not so extraordinary and egregious to coerce Plaintiff’s resignation. Sanchez was promptly investigated and suspended. He was absent from the workplace before Plaintiff resigned. Autozoners is not liable for Sanchez’s harassment. Even if the dispute over sick leave in December 2023 could be considered part of the constructive termination allegations, that dispute cannot be considered an adverse employment action, much less an intolerable working condition intentionally created or knowingly permitted by Autozoners. (*Patten, supra*, 134 Cal.App.4th at 1387; *McRae, supra*, 142 Cal.App.4th at 386.)

When the burden shifts, Plaintiff does not submit any evidence that creates a triable issue of material fact as to whether Autozoners “intentionally created or knowingly permitted working conditions that were so intolerable or aggravated at the time of the employee’s

resignation that a reasonable employer would realize that a reasonable person in the employee's position would be compelled to resign." (*Turner, supra*, 7 Cal.4th at p. 1251.) Plaintiff's declaration statement that she did not know that Sanchez had been terminated when she resigned does not raise any triable issue of material fact as to the existence of intolerable working conditions or a constructive discharge. Further, exhibit B to the Morris declaration indicates that Whitlow told Plaintiff that Sanchez had been suspended on December 18, and that Plaintiff responded that Cobarrubias had already told her. And none of the exhibits to the Morris declaration support the existence of intolerable working conditions that would compel a reasonable employee to resign.

Plaintiff's resignation email is not itself evidence of a constructive discharge. The email makes no mention of Sanchez or any other specific working conditions. To the extent the email appears to be a response to the sick leave dispute, that dispute is not significant enough to constitute an adverse employment action, much less intolerable working conditions. Because Plaintiff has not established the existence of intolerable working conditions that would lead a reasonable employee to feel compelled to resign, she cannot show an adverse employment action that would support the discrimination and retaliation claims. And because Plaintiff cannot show she was terminated, she cannot support her wrongful constructive discharge claim.

Summary adjudication of the first, fourth, and fifth causes of action as brought against Autozoners is granted.

Third Cause of Action: Failure to Prevent Discrimination or Harassment

Under FEHA, an employer has an obligation to "take all reasonable steps necessary to prevent discrimination and harassment from occurring." (Gov. Code, § 12940, subd. (k).) A claim for failure to prevent discrimination, harassment and retaliation necessarily depends on establishing that harassment, discrimination, or retaliation actually occurred. "An employer cannot be liable for failing to take corrective action if the underlying claim fails." (*Schmidt v. Superior Court* (2020) 44 Cal.App.5th 570, 587, citing *Dickson v. Burke Williams, Inc.* (2015) 234 Cal.App.4th 1307, 1314-1317.) Accordingly, a finding of actual discrimination, harassment, or retaliation under FEHA is required before a plaintiff may prevail under Government Code section 12940, subdivisions (k) or (j). (*Scotch v. Art Institute of California* (2009) 173 Cal.App.4th 986, 1021; *Trujillo v. North County Transit Dist.* (1998) 63 Cal.App.4th 280, 282-283.)

Because the court has determined that Autozoners is entitled to summary adjudication of the first and second causes of action as alleged against it, Autozoners is likewise entitled to summary adjudication of the third cause of action as alleged against it.

Sixth, Seventh, Eighth, and Ninth Causes of Action

Where mandated by a state law (including statutes, regulations, standards and orders of the IWC, the Occupational Safety and Health Standards Board and the Division of Occupational Safety and Health), employers must provide meal, rest, or recovery periods that "shall be counted as hours worked" and "for which there shall be no deduction from wages." (Lab. Code, § 226.7, subds. (c), (d).) If the employer fails to provide any of the foregoing, it "shall pay the employee one additional hour of pay at the employee's regular rate of

compensation for each workday that the meal or rest or recovery period is not provided.” (Lab. Code, § 226.7, subd. (c).) Under Labor Code section 512, an employer “may not employ an employee for a work period of more than five hours per day without providing the employee with a meal period of not less than 30 minutes, except that if the total work period per day of the employee is no more than six hours, the meal period may be waived by mutual consent of both the employer and employee.” (Lab. Code, § 512, subd. (a).) If the work day is 10 hours, the employee must be provided with a second 30 minute duty-free meal break. (*Id.*) In general, employers must provide rest periods of a specified minimum duration (generally 10 minutes of paid rest for every four hours worked), and such periods are to be permitted in the middle of the shift “insofar as practicable.” (8 Cal. Code Regs., § 11010-11150, ¶ 12(A).)

An employer satisfies the obligation to “provide” a meal break “if it relieves its employees of all duty, relinquishes control over their activities and permits them a reasonable opportunity to take an uninterrupted 30 minute break, and does not impede or discourage them from doing so.” (*Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1040 (*Brinker*).) The employer may not undermine a formal policy of providing meal breaks by pressuring employees to perform their duties in ways that omit breaks. (*Cicairos v. Summit Logistics, Inc.* (2005) 133 Cal.App.4th 949, 962-963; see also *Jaimez v. Daiohas USA, Inc.* (2010) 181 Cal.App.4th 1286, 1304-1305 [proof of common scheduling policy that made taking breaks extremely difficult would show violation].) But “the employer is not obligated to police meal breaks and ensure no work thereafter is performed.” (*Brinker, supra*, 53 Cal.4th at 1040.) And a “missed meal break does not constitute a violation if the employee waived the meal break, or otherwise voluntarily shortened or postponed it.” (*Lampe v. Queen of the Valley Med. Ctr.* (2018) 19 Cal.App.5th 832, 851; see also *David v. Queen of Valley Med. Ctr.* (2020) 51 Cal.App.5th 653, 661 (*David*).) “Similar principles apply to rest periods. An employer must ‘authorize and permit all employees to take rest periods’ at the rate of 10 minutes of rest for each four hours the employee works ‘or major fraction thereof.’” (*David, supra*, 51 Cal.App.5th at p. 661, quoting *Brinker, supra*, 53 Cal.4th at p. 1028.)

The complaint’s sixth cause of action alleges that Plaintiff was unable to take rest breaks “for various reasons, including but not limited to, the pressures from Plaintiff’s workload and from management to take shorter breaks than she was entitled to, or none at all.” (Complaint, ¶ 80.) It also alleges that Defendants failed to provide “the necessary coverage to take all necessary breaks.” (*Id.* at ¶ 81.) The complaint’s seventh cause of action alleges that Plaintiff was not paid all wages due upon termination because she was not compensated for “all premium wages penalties associated with all her missed/interrupted rest breaks.” (Complaint, ¶ 88.) The eighth cause of action alleges a generic failure to provide accurate wage statements. The ninth cause of cause of action alleges that “Defendant’s violations of California wage and hour laws” constitute an unlawful business practice. (Complaint, ¶ 100.) Statutory violations must be alleged with particularity. The only wage and hour violations the complaint sufficiently alleges are a failure to provide rest breaks and a failure to pay wages due upon termination based upon the failure to provide rest breaks.

Autozoners has submitted evidence establishing that it had a compliant rest break policy. Plaintiff was aware of that policy. Under that policy, employees were supposed to notify a manager if they were prevented from taking rest breaks. (See undisputed material facts (UMFs) 54-58; Autozoners exhibits 9, 10, 11, 14, and 17.) Plaintiff testified at deposition that she communicated with other employees about when they should take rest breaks as part of her job. (Autozoners’ ex. 14 at p. 96:13-18.) Plaintiff understood that, under Autozoners’

policy, she was supposed to notify a manager if she could not take a break. Contrary to complaint's allegation of "pressure" to not take breaks, Plaintiff testified that no one told her to skip a rest break. (*Id.* at pp. 116:9-118:13.) Plaintiff testified that she sometimes missed breaks when working alone, but could not give an estimate of how often she was working alone. (*Id.* at p. 118:14-25.) She testified that she received a meal period penalty or premium for some but not all of the times she missed a meal or rest period. (*Id.* at p. 131:1-5.) She also testified that she complained about missing a meal period "maybe like a handful of times." (*Id.* at p. 132:4-15.) Plaintiff later testified that there were instances when she skipped a rest break when working alone, and that there were probably occasions when she had forgotten to take a rest break. (*Id.* at p. 172:1-23.)

Whitlow testified that she had no knowledge of any complaints from Plaintiff about missed rest breaks. (Autozoners' ex. 17 at pp. 71:1-73:9.) Autozoners' evidence is sufficient to meet its initial burden to show that it did not fail to provide Plaintiff with the opportunity for rest breaks and did not instruct her not to take rest breaks.

When the burden shifts, Plaintiff is unable to raise a triable issue of material fact on this point. Plaintiff's declaration does not address the alleged inability to take rest breaks. Exhibits A, B, C and D to the Hoffman declaration do not raise any triable issue of material fact as to whether Plaintiff was not provided with the opportunity to take rest breaks or was pressured to not take rest breaks.

The opposition acknowledges that the complaint's seventh, eighth, and ninth causes of action are derivative of the sixth. (Opposition at pp. 15:27-16:1.) The opposition argues *Brinker* decision imposed a duty on the employer to affirmatively verify that meal or rest breaks were taken. But the "difficulty with the view that an employer must ensure no work is done—i.e., prohibit work—is that it lacks any textual basis in the wage order or statute." (*Brinker, supra*, 53 Cal.4th at p. 1038.) The employer is not obligated to police breaks. "Proof an employer had knowledge of employees working through meal periods will not alone subject the employer to liability for premium pay; employees cannot manipulate the flexibility granted them by employers to use their breaks as they see fit to generate such liability. On the other hand, an employer may not undermine a formal policy of providing meal breaks by pressuring employees to perform their duties in ways that omit breaks." (*Id.* at p. 1040.) There is no evidence before the court that Autozoners pressured Plaintiff to perform her duties in ways that eliminated the opportunity for rest breaks.

Summary adjudication of the sixth, seventh, eighth, and ninth causes of action as alleged against Autozoners is granted.

OBJECTIONS TO EVIDENCE

Objections to evidence made in connection with a motion for summary judgment or adjudication must comply with California Rules of Court, rule 3.1354. "Unless otherwise excused by the Court on a showing of good cause, all written objections to evidence in support of or in opposition to a motion for summary judgment must be served and filed at the same time as the objecting party's opposition or reply papers are served and filed." (Cal. Rules of Court, rule 3.1354(a).) Two documents must be filed, evidentiary objections and a separate proposed order on the objections. Both documents must be in one of the two approved formats set forth in the rule. Courts are not required to rule on objections that do not fully comply with

the Rule. (*Vineyard Spring Estates v. Super. Ct.* (2004) 120 Cal.App.4th 633, 642 [trial courts only have duty to rule on evidentiary objections presented in proper format]; *Hodjat v. State Farm Mutual Automobile Ins. Co.* (2012) 211 Cal.App.4th 1 [trial court not required to rule on objections that do not comply with rules of court, and not required to give objecting party a second chance at filing properly formatted papers].) “Objections to evidence that are not ruled on for purposes of the motion shall be preserved for appellate review.” (Code Civ. Proc. § 437c, subd. (q).)

With its reply, Autozoners has submitted objections to exhibit B to the declaration of Andrew Morris in support of the opposition. Because those objections do not comply with California Rules of Court, rule 3.1354, the court declines to rule on them.

CONCLUSION

Defendant Autozoners’ motion for summary judgment of all nine causes of action in the complaint as alleged against it is granted.

The court will prepare the order.

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Calendar Line 7

Case Name: Harold Davis et al. v. David Krause et al.

Case No.: 25CV457236

This limited civil action arises from a landlord/tenant dispute between plaintiffs Harold Davis and Ariana Davis (Plaintiffs) and defendants David Krause (Krause), Norcal Property Management, Inc., and Doe defendants.

The original and still operative complaint is a form complaint filed in January 2025. It alleges two causes of action: (1) breach of contract (a lease agreement entered into in January 2022); and (2) general negligence. There are no exhibits attached to the complaint.

There are two narrative allegation portions in the complaint: (1) “From February 11, 2022 to January 27, 2023 Plaintiffs informed Defendant [of] the following issues, water damage, water gutters clogged causing a waterfall and flooding in the back yard near the sliding door entrance to the property. In addition, there was existing mold in the bathroom which was not repaired as requested by Plaintiffs. Thus making the home uninhabitable and in breach of contract.” (Complaint, ¶ BC-2.) And (2) “Defendants were negligent and breached their duty of care by failing to make the property habitable since Plaintiff continued to inform Defendants of the issues and repairs in which Defendants failed to address and take remedial measures. Furthermore, on January 27, 2023 Plaintiff informed Defendants [of] the following issues, water damage, water gutters clogged causing a waterfall and flooding in the back yard, however the Defendants failed to respond or to make the necessary repairs. Plaintiff alleges that the Defendants negligently owned and maintained the property leased by Plaintiff in a manner that was unsafe and created a dangerous condition that caused injury to Plaintiff. Therefore, Plaintiff suffered damages as a result which will be proven at trial.” (Complaint, ¶ GN-1.) The complaint does not allege a cause of action for breach of the implied warranty of habitability. (See Complaint, ¶ 8.)

At issue is a motion for summary judgment by defendants Krause and Norcal Property Management, Inc. (hereafter, Defendants). Plaintiffs oppose the motion.

LEGAL STANDARD—SUMMARY JUDGMENT

The pleadings limit the issues presented for summary judgment or summary adjudication. Such a motion may not be granted or denied based on issues not raised by the pleadings. (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258 (*Laabs*); *Nieto v. Blue Shield of Calif. Life & Health Ins.* (2010) 181 Cal.App.4th 60, 73 (*Nieto*).) The moving party bears the initial burden of production to make a prima facie showing that there are no triable issues of material fact. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850 (*Aguilar*).) A motion for summary judgment or adjudication shall be granted only if it completely disposes of an entire cause of action, an affirmative defense, a claim for damages, or an “issue of duty.” (Code Civ. Proc., § 437c, subd. (f)(1); *McCaskey v. California State Auto. Ass’n* (2010) 189 Cal.App.4th 947, 975; *Palm Spring Villas II Homeowners Association, Inc. v. Parth* (2016) 248 Cal.App.4th 268, 288.)

“A defendant seeking summary judgment must show that at least one element of the plaintiff’s cause of action cannot be established, or that there is a complete defense to the cause of action. . . . The burden then shifts to the plaintiff to show there is a triable issue of material

fact on that issue.” (*Alex R. Thomas & Co. v. Mutual Service Casualty Ins. Co.* (2002) 98 Cal.App.4th 66, 72; internal citations omitted.) “There is a triable issue of material fact if, and only if, the evidence would allow a reasonable finder of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof.” (*Aguilar, supra*, 25 Cal.4th at p. 850.) While the same standards of admissibility govern both sides’ supporting evidence, the opposition evidence is liberally construed while the moving party’s evidence is strictly construed. (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 768.) The evidence must be liberally construed in support of the opposing party, resolving any doubts in favor of that party. (*Yanowitz v. L’Oreal USA, Inc.* (2005) 36 Cal.4th 1028, 1037 (*Yanowitz*).)

A reply “shall not include any new evidentiary matter, additional material facts, or separate statement submitted with the reply and not presented in the moving papers or opposing papers.” (Code Civ. Proc., § 437c, subd. (b)(4); *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537-38; *Nazir v. United Airlines, Inc.* (2009) 178 Cal.App.4th 243, 252.)

BASIS FOR DEFENDANTS’ MOTION

Defendants move “for summary judgment in their favor.” In the alternative, they seek summary adjudication “as to the following issues: (1) Plaintiffs’ failure to establish medical causation; (2) Plaintiffs’ failure to prove a breach of the implied warranty of habitability; (3) Plaintiffs’ failure to establish compensable personal property damages; and (4) Plaintiffs’ failure to establish recoverable emotional distress damages.” (Notice of Motion at p. 2:3-7.)

A form complaint must list all causes of action alleged and must include a separate attachment for each cause of action. Breach of the warranty of habitability is a cause of action distinct from both breach of contract and negligence. It must be pleaded separately. “The elements of a cause of action for breach of the implied warranty of habitability ‘are the existence of a material defective condition affecting the premises’ habitability, notice to the landlord within a reasonable time after the tenant’s discovery of the condition, the landlord was given a reasonable time to correct the deficiency, and resulting damages.’” (*Peviani v. Arbors at California Oaks Property Owner, LLC* (2021) 62 Cal.App.5th 874, 891; see also 2 CACI 4350.) The complaint also does not allege any violation of Civil Code section 1941.1. Statutory claims must be alleged with particularity.

The complaint does not allege a cause of action for breach of the implied warranty of habitability. The complaint also makes no mention of emotional distress damages; it seeks only monetary damages in the amount of \$30,000.00. The space for requesting “other (specify)” damages is left blank. (See complaint, ¶ 10.) A motion for summary judgment must be directed to the issues raised by the pleadings. The opposition papers to a defendant’s motion for summary judgment may not create issues outside the pleadings and are not a substitute for an amendment to the pleadings. Declarations in opposition to a motion for summary judgment are no substitute for amended pleadings. (*County of Santa Clara v. Atlantic Richfield Co.* (2006) 136 Cal.App.4th 292, 332-333.)

California Rules of Court, rule 3.1350, subdivision (b) states, “If summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated, verbatim, in the separate statement

of undisputed material facts.” California Rules of Court, rule 3.1350(d)(1)(A) further states that the statement in support of a motion “must separately identify: (A) Each cause of action, claim for damages, issue of duty, or affirmative defense that is the subject of the motion.” Defendants’ separate statement does not repeat any of the causes of action or issues mentioned in the notice of motion and only lists 44 undisputed material facts in support of summary judgment. Defendants’ separate statement is also not in the format required by California Rules of Court, rule 3.1350(h).

Rather than deny the motion outright, the court will treat it as a motion for summary judgment only. Summary adjudication is unavailable. (See *Holt v. Brock* (2022) 85 Cal.App.5th 611, 619 [court’s power to deny summary judgment outright for failure to comply with the rules of court is discretionary, not mandatory.])

DISCUSSION

Only two causes of action are alleged in the complaint: breach of a written contract (a lease agreement) and general negligence.

Summary Judgment Must be Denied As to the Complaint

“To prevail on a cause of action for breach of contract, the plaintiff must prove (1) the contract, (2) the plaintiff’s performance of the contract or excuse for nonperformance, (3) the defendant’s breach, and (4) the resulting damage to the plaintiff.” (*Richman v. Hartley* (2014) 224 Cal.App.4th 1182, 1186.) “The elements of a cause of action for negligence are well established. They are (a) a legal duty to use due care; (b) a breach of such legal duty; [and] (c) the breach as the proximate or legal cause of the resulting injury.” (*Ladd v. County of San Mateo* (1996) 12 Cal.4th 913, 917; see also CACI, No. 400.)

Defendants do not specifically address breach of contract or negligence in their supporting memorandum or their separate statement. For this reason, summary judgment must be denied. (*North Coast Business Park v Nielsen Construction Co.* (1993) 17 Cal.App.4th 22, 29, fn. 4 [finding that facts not set forth in the moving party’s separate statement of facts cannot be considered in ruling on a motion for summary judgment.]) The closest Defendants come to arguing that an essential element of the two causes of action that are actually alleged in the complaint cannot be established is to assert that “Plaintiffs’ claims fail because they cannot satisfy the essential element of causation.” (Supporting memorandum at p. 7:4.) But that isolated argument is insufficient to satisfy their initial burden.

Argument About Causes of Action Not Raised in the Complaint

Defendants make several arguments about causes of action not alleged in the complaint. For example, defendants argue that in “California mold litigation, causation must be established through competent expert testimony grounded in reliable scientific evidence of exposure, not speculation.” (Supporting memorandum at p. 7:4.) But the complaint cannot reasonably be construed as alleging any type of mold-related injury. More broadly, the complaint cannot reasonably be construed as alleging that either Plaintiff suffered any kind of personal injury or illness, through mold exposure or otherwise. References in both sides’ papers to mold possibly having an effect on the health of Plaintiffs’ child are irrelevant. That is not alleged in the complaint, and Plaintiffs’ child is not a party to this lawsuit. (Code Civ.

Proc., § 372, subd. (a); *Alex R. v. Superior Court* (2016) 248 Cal.App.4th 1, 7 [general rule is minor child must appear through guardian ad litem].)

Defendants next argue that Plaintiffs cannot recover emotional distress damages. But the complaint does not make any reference to emotional distress, much less state a cause of action for negligent or intentional infliction of emotional distress. Nor does it seek emotional distress damages. (Complaint at ¶ 10.) Because Plaintiffs have not alleged causes of action for nuisance, breach of the implied warranty of habitability, or intentional or negligent infliction of emotional distress, they are not entitled to damages for mental suffering under *Stoiber v. Honeychuk* (1980) 101 Cal.App.3d 902, 919-922.

The complaint also does not allege that Plaintiffs were constructively evicted. Constructive eviction is another distinct cause of action not encompassed by breach of contract or negligence. It would have to be separately pleaded. The creation of form complaints has not changed the requirement that a complaint must state all facts necessary to support the alleged causes of action. (*People ex rel. Dept. of Transportation v. Superior Court* (1992) 5 Cal.App.4th 1480, 1484.) Summary judgment cannot be granted or denied based on issues outside the pleadings. (*Laabs, supra*, 163 Cal.App.4th at 1258; *Nieto, supra*, 181 Cal.App.4th at 73.) Defendants' arguments regarding medical causation, breach of the implied warranty of habitability, constructive eviction, and emotional distress fail to meet their initial burden.

Defendants argue Plaintiffs have no evidence to support the one form of damages that is alleged in the complaint: \$30,000 in apparently property damages (as no personal injuries of any kind are alleged in the complaint). (Complaint at ¶ 10.) Defendants rely on certain written discovery responses from both Plaintiffs and excerpts from their deposition testimony. (See undisputed material facts 14-16, 18 and 25, citing portions of exhibits 4, 6, 7, and 10 to the declaration of Brian Ngo, counsel for Defendants.)

When a defendant moves for summary judgment on the ground that a plaintiff has “no evidence” to establish an essential element of a cause of action, a moving defendant must support such a motion with discovery admissions or other admissible evidence following extensive discovery, showing that “plaintiff does not possess, and cannot reasonably obtain, needed evidence.” (*Aguilar, supra*, 25 Cal.4th at pp. 854-855.) It is not enough for a moving defendant to show merely that a plaintiff currently “has no evidence” on a key element of the claim. (See *Gaggero v. Yura* (2003) 108 Cal.App.4th 884, 891, citing *Aguilar* [“the absence of evidence to support a plaintiff’s claim is insufficient to meet the moving defendant’s initial burden of production. The defendant must also produce evidence that the plaintiff cannot reasonably obtain evidence to support his or her claim.”].) “Such evidence may consist of the deposition testimony of the plaintiff’s witnesses, the plaintiff’s factually devoid discovery responses, or admissions by the plaintiff in deposition or in response to requests for admission that he or she has not discovered anything that supports an essential element of the cause of action.” (*Lona v. Citibank, N.A.* (2011) 202 Cal.App.4th 89, 110.) “A motion for summary judgment is not a mechanism for rewarding limited discovery; it is a mechanism allowing the early disposition of cases where there is no reason to believe that a party will be able to prove its case.” (*Weber v. John Crane, Inc.* (2006) 143 Cal.App.4th 1433, 1441-1442.)

Though the evidence Defendants rely on suggests that Plaintiffs may have little evidence to support \$30,000 in damages, they do not establish that Plaintiffs cannot reasonably

obtain any evidence to support that figure. Therefore, this argument also fails to meet Defendants' initial burden for summary judgment.

CONCLUSION

Defendants' motion for summary judgment is denied for failure to meet the initial burden.

The court will prepare the order.

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Calendar Line 8

Case Name: Jennifer Harris v. FCA US, LLC et al.

Case No.: 25CV458303

This is an action under the Song-Beverly Consumer Warranty Act brought by plaintiff Jennifer Harris (Harris) against defendants FCA US, LLC (FCA), San Leandro Chrysler Dodge Jeep Ram (San Leandro), and Doe defendants. The lawsuit is based on Harris's February 23, 2017 purchase of a 2017 Jeep Wrangler (the Subject Vehicle). As part of the purchase, Harris entered into a warranty contract with FCA.

Harris filed the original and still operative complaint on February 6, 2025. It alleges six causes of action: (1) violation of Civil Code section 1793.2, subdivision (d) (against FCA only); (2) violation of Civil Code section 1793.2, subdivision (b) (against FCA only); (3) violation of Civil Code section 1793.2, subdivision (a)(3) (against FCA only); (4) breach of the implied warranty of merchantability (against FCA only); (5) negligent repair (against San Leandro only); and (6) fraudulent inducement—concealment (against FCA only). A copy of the warranty agreement is attached as exhibit A to the complaint.

At issue is FCA's motion for judgment on the pleadings. Harris opposes the motion. FCA's motion also requests that the court strike language related to punitive damages from the complaint.

LEGAL STANDARD

A motion for judgment on the pleadings "is equivalent to a belated general demurrer." (*Sprague v. County of San Diego* (2003) 106 Cal.App.4th 119, 127.) It has the same function as a general demurrer, but it is made after the time for demurrer has expired. Except as provided by statute (Code Civ. Proc., § 438), the rules governing demurrers apply. As with a demurrer, in ruling on a motion for judgment on the pleadings the court accepts as true all properly pleaded material factual allegations, but does not accept as true contentions, deductions, or conclusions of fact or law. (*Valero v. Spread Your Wings, LLC* (2023) 88 Cal.App.5th 243, 253 (*Valero*).) Extrinsic evidence cannot be considered.

The court has considered the declaration from FCA's counsel only to the extent it addresses FCA's meet and confer efforts. The efforts were inadequate. Sending an email does not comply with Code of Civil Procedure section 439, subdivision (a), which requires a moving party to meet and confer "in person, by telephone, or by video conference with the party who filed the pleading that is subject to the motion for judgment on the pleadings." (Unspecified statutory references are to the Code of Civil Procedure.) But FCA's failure to adequately meet and confer is not, by itself, a basis for denying the motion. (§ 439, subd. (a)(4).)

DISCUSSION

FCA challenges each cause of action in the complaint on the grounds that they are time-barred and that they fail to state sufficient facts. FCA cannot challenge the fifth cause of action because it is alleged against San Leandro only.

First and Second Cause of Action

FCA’s notice challenges the first through third causes of action as time-barred. (Notice, p. 2:7-9.) But FCA’s memorandum of points and authorities challenges only the first and second causes of action. The court limits its discussion to whether the first and second causes of action are sufficiently pleaded. (*Benach v. County of Los Angeles* (2007) 149 Cal.App.4th 836, 852 (*Benach*) [“When [a party] fails to raise a point, or asserts it but fails to support it with reasoned argument and citations to authority, we treat the point as waived.”])

Assembly Bill No. 1755 added chapter 12 to title 10 of part 2 of the Code of Civil Procedure. The bill added sections 871.20 through 871.28. The bill was signed by the Governor in September 2024 and became effective on January 1, 2025. (Stats. 2024, ch. 938.) It initially applied to all actions seeking restitution, vehicle replacement, or civil penalties under Civil Code sections 1793.2, 1793.22, and 1794, regardless of the vehicle manufacturer. (Former section 871.20; stats. 2024, ch. 938, § 1.)

Section 871.21 includes two statutes of repose. Section 871.21, subdivision (a) provides that an action governed by “Section 871.20 shall be commenced within one year after the expiration of the applicable express warranty.” Section 871.21 states, “Notwithstanding subdivision (a), an action covered by Section 871.20 shall not be brought later than six years after the date of original delivery of the motor vehicle.”

The Legislature amended chapter 12 with Senate Bill No. 26, urgency legislation that became effective upon the Governor’s signature on April 2, 2025. (Stats. 2025, ch. 1.) Senate Bill No. 26 amended sections 871.20 and 871.24. It also added sections 871.29 and 871.30. Senate Bill No. 26 amended chapter 12 in a fundamental way by making its provisions applicable only to vehicle manufacturers who opt in to its requirements. Section 871.20, subdivision (a), now provides that chapter 12 applies to actions “brought against a manufacturer who has elected under section 871.29 to proceed under this chapter.” Section 871.30, subdivision (a), provides: “Within 30 days of the effective date of the act adding this section, a manufacturer may elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles sold in the year 2025 and in all prior years by providing written notice of that election to the Arbitration Certification Program within the Department of Consumer Affairs.” That section continues that if a manufacturer fails to opt in, chapter 12 will not apply to actions against that manufacturer filed between January 2025 and April 2025. (§ 871.30, subd. (c).)

Thus, to rely on sections 871.20 and 871.21, FCA needed to “elect to be governed by this chapter for all actions described in subdivision (a) of Section 871.20 with respect to all of its motor vehicles.” (§§ 871.29, subd. (b), 871.30, subd. (c).) It is not apparent from Harris’s February 2025 complaint that FCA opted in to chapter 12, and FCA makes no such showing in its moving papers. And while Harris provides a website indicating that FCA opted in on April 25, 2025, Harris has not requested judicial notice of that fact. (Opposition, p. 1:24-27.) FCA fails to demonstrate that either section 871.20 or 871.21 applies to this action.

Even assuming that FCA opted in on April 25, 2025, the court would nonetheless conclude that sections 871.20 and 871.21 do not apply to Harris’s first and second causes of action.

There is a general presumption against retroactive application of new statutes “in the absence of a clear indication of a contrary legislative intent, such as express language of retroactivity.” (*Quarry v. Doe I* (2012) 53 Cal.4th 945, 955 (*Quarry*)). But legislation that “shortens a limitations period is considered procedural and is applied retroactively to preexisting causes of action, so long as parties are given a reasonable time in which to sue.” (*Coachella Valley Mosquito & Vector Control Dist. v. California Public Employment Relations Bd.* (2005) 35 Cal.4th 1072, 1091-1092.) “When necessary to provide a reasonable time to sue, a shortened limitations period may be applied prospectively so that it commences on the effective date of the statute, rather than on the date the cause of action accrued.” (*Id.* at p. 1092.) If a “period has been legislatively shortened, constitutional and substantive issues will arise concerning retrospective application if: ‘[I]n a given case, that retrospective application may violate due process by in effect eliminating the plaintiff’s right. If the time left to file suit is reasonable, no such constitutional violation occurs, and the statute is applied as enacted. If no time is left, or only an unreasonably short time remains, then the statute cannot be applied at all.’ ” (*Szynter v. Malone* (2007) 155 Cal.App.4th 1152, 1162.) Whether a party has a reasonable time after a change in law to file an action is a question of law. (*Ibid.*)

If the court applied the statute of repose, Harris would have had to file suit by February 2023, which was more than a year before Assembly Bill No. 1755 was signed. It is unreasonable to conclude that Harris was required to comply with a deadline almost two years before the effective date of the law creating the deadline.

On rebuttal, FCA contests Harris’s claim that FCA seeks to apply sections 871.20 and 871.21 retroactively. FCA argues the sections do not apply retroactively, but instead have retroactive *effect* in eliminating causes of action based on Civil Code section 1793.2, subdivisions (b) and (d). (Reply, p. 2:12-16.) FCA identifies no language in the statute supporting this interpretation. (*Public Employment Relations Bd. v. Bellflower Unified School Dist.* (2018) 29 Cal.App.5th 927, 939 [“The absence of cogent legal argument or citation to authority allows this court to treat the contention as waived.”].) FCA also provides no authority for its proposition that “retrospective effect is not the same as retroactive application.” (Reply, p. 2:12-13.) In *Kizer v. Hanna* (1989) 48 Cal.3d 1, 7, a case FCA cites, the Court defined a statute as retroactive where it substantially changes the legal effect of past events. The *Kizer* Court then concluded a statute did not have a retroactive effect due to the absence of such a substantial change. (*Id.* at p. 8.) To the extent FCA seeks to impose the limitations of Section 871.21, the imposition would be retroactive. (See *Quarry, supra*, 53 Cal.4th at p. 956 [a law has retroactive effect when it substantially affects existing rights and obligations].)

FCA argues for the first time in its reply that due process is not implicated because a statutorily created cause of action is not a vested right. (Reply, p. 2:19-28.) FCA forfeited that argument by not raising it in until the reply. (*Tellez v. Rich Voss Trucking Inc.* (2015) 240 Cal.App.4th 1052, 1066 [points raised for the first time in a reply brief are forfeited].) Even if the court considered the argument, it is unpersuasive. FCA cites *Bouley v. Long Beach Memorial Medical Center* (2005) 127 Cal.App.4th 601, 609, which reiterated that the retroactive application of a law is unconstitutional if it deprives an individual of a vested right without due process of law. It is true that statutory causes of action are not a vested right (*id.* at p. 610, fn. 5), and that such rights may be altered. (*Yoshioka v. Superior Court* (1997) 58 Cal.App.4th 972, 982.) But alteration is forbidden when the party is deprived of every reasonable method of securing just compensation. (*Ibid.*; *Aronson v. Superior Court* (1987)

191 Cal.App.3d 294, 297 [“retrospective application of a shortened limitations period is permissible provided the party has a reasonable time to avail himself of his remedy before the statute cuts off his right.”].) Applying sections 871.20 and 871.21 to Harris’s first and second causes of action would deprive her any possibility of remedy. As noted above, it is unreasonable to expect Harris to have filed this action two years before the statute came into effect. Harris’s first and second causes of action are not time-barred under sections 871.20 and 871.21.

The court denies FCA’s motion for judgment on the pleadings as to the first and second causes of action because they are not time-barred under sections 871.20 or 871.21.

Third Cause of Action

FCA asserts that Harris’s third cause of action for violation of Civil Code section 1793.2, subdivision (a)(3) is inadequately pleaded.

Civil Code section 1793.2, subdivision (a)(3) requires manufacturers to make available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period. Statutory causes of action must be pleaded with particularity. (*Covenant Care, Inc. v. Superior Court* (2004) 32 Cal.4th 771, 790.)

Here, the third cause of action largely restates the language of the statute. (Complaint, ¶ 52.) It does not include any allegations specific to Harris’s case. It is not pleaded with the particularity required of statutory causes of action. FCA’s motion for judgment on the pleadings as to the third cause of action is granted.

A plaintiff bears the burden of demonstrating that an amendment would cure the defect identified on demurrer. (*Schifando v. City of Los Angeles* (2003) 31 Cal.4th 1074, 1081; *Shaeffer v. Califia Farms, LLC* (2020) 44 Cal.App.5th 1125, 1145 [“The onus is on the plaintiff to articulate the ‘specifi[c] ways’ to cure the identified defect, and absent such an articulation, a trial or appellate court may grant leave to amend ‘only if a potentially effective amendment [is] both apparent and consistent with the plaintiff’s theory of the case.’ ”].) Harris’s opposition does not meet this burden. The court will nonetheless grant leave to amend because this is the first pleading challenge to be heard in this action.

Fourth Cause of Action

FCA argues that the fourth cause of action for breach of implied warranty is time-barred by the applicable four-year statute of limitations.

“Under the implied merchantability warranty, ‘every sale of consumer goods that are sold at retail in this state shall be accompanied by the manufacturer’s and the retail seller’s implied warranty that the goods are merchantable.’ ” (*Brand v. Hyundai Motor America* (2014) 226 Cal.App.4th 1538, 1545, quoting Civ. Code, § 1792.) “The warranty ‘arises by operation of law’ and therefore applies despite its omission from a purchase contract.” (*Ibid.*) “Merchantability, as pertinent here, means that the goods ‘[p]ass without objection in the trade under the contract description,’ and are ‘fit for the ordinary purposes for which such goods are used.’ ” (*Ibid.*, quoting Civ. Code, § 1791.1, subd. (a).) To properly assert a claim for breach of implied warranty, a plaintiff must allege breach of a warranty, occurring while the warranty

is valid, and must bring suit within the limitations period. (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1306 (*Mexia*)). The “implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.” (*Id.* at p. 1304.) Thus, if a product is sold with a latent defect, the implied warranty is breached “by the existence of the unseen defect, not by its subsequent discovery.” (*Id.* at p. 1305.)

The statute of limitations for the fourth cause of action is four years. (Com. Code, § 2725, subd. (1).) The cause of action accrues “when the breach occurs, regardless of the aggrieved party’s lack of knowledge of the breach.” (Com. Code, § 2725, subd. (2).) The duration provision in the Song-Beverly Act provides that the duration “shall be coextensive in duration with an express warranty which accompanies the consumer goods... in no event shall such implied warranty have a duration of less than 60 days nor more than one year following the sale.” (*Mexia, supra*, 174 Cal.App.4th at 1304, citing Civ. Code, § 1791.1, subd. (c).)

Here, the complaint alleges that the Subject Vehicle was purchased on February 23, 2017. (Complaint, ¶ 7.) The complaint was filed nearly eight years later. While the complaint alleges various rules and doctrines that purportedly toll the applicable statutes of limitation, those allegations are so generic and conclusory that they cannot be accepted as true for purposes of this motion. (Complaint, ¶ 37.) The complaint alleges no facts in support of those theories, rendering the allegations deficient. (*Valero, supra*, 88 Cal.App.5th at p. 253.) When a plaintiff relies on a theory of fraudulent concealment, delayed accrual, equitable tolling, or estoppel to save a cause of action that otherwise appears on its face to be time-barred, he or she must specifically plead facts which, if proved, would support the theory.” (*Mills v. Forestex Co.* (2003) 108 Cal App 4th 625, 641.) FCA’s motion for judgment on the pleadings as to the fourth cause of action is granted.

Harris’s opposition does not meet the burden to demonstrate that an amendment would cure the defect identified on demurrer. But because this is the first pleading challenge, the court will grant leave to amend.

Sixth Cause of Action

FCA contends that the sixth cause of action for fraudulent inducement – concealment fails to allege sufficient facts with the requisite specificity and is time-barred by the applicable three-year statute of limitations.

Specificity of the Allegations

The elements of fraud are (1) a misrepresentation; (2) knowledge of its falsity; (3) intent to induce reliance; (4) justifiable reliance; and (5) resulting damage. (*Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, 838-839 (*Dhital*)). Fraudulent inducement is a subset of fraud that occurs when a promisor knows what he or she is signing but his or her consent is induced by fraud. (*Id.* at p. 839.) Although it is a general rule that each element in a fraud cause of action must be pleaded with specificity (*Lazar v. Super. Ct.* (1996) 12 Cal.4th 631, 645), this pleading requirement is relaxed in claims for concealment. (*Alfaro v. Community Housing Imp. System & Planning Ass’n., Inc.* (2009) 171 Cal.App.4th 1356, 1384 (*Alfaro*) [“How does one show ‘how’ and ‘by what means’ something didn’t happen, or ‘when’ it never happened, or ‘where’ it never happened?”].)

The complaint satisfies the pleading requirements for a fraud cause of action. It alleges a direct contractual relationship (and duty to disclose) between Harris and FCA in the form of an express written warranty. (Complaint, ¶ 7.) The complaint alleges that the Subject Vehicle exhibited various defects. (*Id.* at ¶¶ 12-17.) Harris alleges that FCA knew that her vehicle had those defects, but failed to disclose them when she purchased the vehicle. (*Id.* at ¶¶ 18, 66.) Harris further alleges that FCA intentionally concealed those defects to defraud Harris. (See *id.* at ¶¶ 68-69.) Harris alleges that had she known about the defects, she would not have purchased the Subject Vehicle. (*Id.* at ¶ 69.) At least one appellate court has found similar allegations sufficient to support a cause of action for fraudulent inducement by concealment. (*Dhital, supra*, 84 Cal.App.5th at pp. 843-844.) Although the Supreme Court initially granted review in *Dhital*, it subsequently dismissed review, which means *Dhital* is precedential authority. (Cal. Rules of Court, rule 8.1115(e)(2).) Further, Harris need not plead the identity of individuals at FCA who allegedly concealed facts about defects in the Subject Vehicle, as that information would be uniquely within FCA’s knowledge. (*Alfaro, supra*, 171 Cal.App.4th at p. 1384.)

FCA relies on two federal district court cases to contend Harris insufficiently pleads the nature of the defect, FCA’s exclusive knowledge of the defect, and Harris’s reliance on FCA materials or advertisements. (Motion at pp. 9:11-10:3, 10:21-11:13.) Those case are not binding on this court. (*People v. Uribe* (2011) 199 Cal.App.4th 836, 875.) And the complaint sufficiently alleges a fraud cause of action. (Complaint, ¶¶ 16, 19, 21; see *Dhital, supra*, 84 Cal.App.5th at p. 844.)

FCA also contends that Harris fails to allege FCA’s intent to defraud through affirmative statements or a failure to disclose any alleged facts. (Motion, p. 11:19-20.) FCA overlooks paragraphs 68-69 of the complaint, which allege FCA failed to disclose engine defects. To the extent FCA asserts a lack of specificity in alleging intent, a general allegation of intent is sufficient. (See *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039, 1060 [false promise sufficiently pleaded with a general allegation that the promise was made without an intent to perform].)

FCA argues in a footnote that the cause of action “should likely also be dismissed” because it is barred by the economic loss rule. (Motion, p. 9:5, fn. 1.) FCA risked forfeiting that argument by raising it in a footnote. The argument is also without merit because “the economic loss rule does not apply to limit recovery for intentional tort claims like fraud.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.) More specifically, the economic loss rule does not apply to fraudulent inducement of a contract. (*Erlich v. Menezes* (1999) 21 Cal.4th 543, 552 (*Erlich*); *Robinson Helicopter Co. v. Dana Corp.* (2004) 34 Cal.4th 979, 989-990 (*Robinson*); *County of Santa Clara v. Atlantic Richfield Co.* (2006) 137 Cal.App.4th 292, 328-329 [“The analysis [in *Robinson*] suggested that fraud *itself* is immune from application of the economic loss rule because fraud is particularly blameworthy and therefore unlike both contract causes of action *and* products liability causes of action.”], internal citation omitted.)

Statute of Limitations

The statute of limitations applicable to the sixth cause of action for fraudulent inducement through concealment is the three-year statute set forth in Code of Civil Procedure section 338, subdivision (d). A claim for fraud accrues on the date of “discovery, by the

aggrieved party, of the facts constituting the fraud.” (Code Civ. Proc. § 338, subd. (d); *Britton v. Girardi* (2015) 235 Cal.App.4th 721, 734.) “‘Although the statute does not expressly provide that the claim will accrue based upon either actual or inquiry notice of the claimant, California courts have long construed it in such a fashion.’ As our Supreme Court has long held, under Code of Civil Procedure section 338, subdivision (d), a ‘plaintiff must affirmatively excuse his [or her] failure to discover the fraud [or mistake] within three years after it took place, by establishing facts showing that he [or she] was not negligent in failing to make the discovery sooner and that he [or she] had no actual or presumptive knowledge of facts sufficient to put him [or her] on inquiry.’” (*Krolikowski v. San Diego City Employees’ Retirement System* (2018) 24 Cal.App.5th 537, 561-562, internal citations omitted.)

Here, the facts constituting the fraud here are the sale of the Subject Vehicle to Harris in February 2017 without disclosure of the engine defect allegedly known to FCA. The complaint was filed more than seven years later. The complaint’s vague and conclusory allegations of tolling do not satisfy the standard for tolling or delayed discovery. (Complaint, ¶ 37.) Similarly, the allegation that Harris discovered the alleged fraud “shortly before” filing the complaint is insufficient. (*Id.* at ¶ 38.) The complaint alleges no facts that affirmatively excuse the failure to discover the alleged fraud within three years of purchasing the Subject Vehicle. The complaint also does not allege enough information about the class action that purportedly tolled the statute of limitations. (*Am. Pipe & Constr. Co. v. Utah* (1974) 414 U.S. 538, 554 [“[T]he commencement of a class action suspends the applicable statute of limitations as to all asserted members of the class who would have been parties had the suit been permitted to continue as a class action.”])

FCA’s motion for judgment on the pleadings as to the sixth cause of action for fraudulent inducement through concealment on statute of limitations grounds is granted with leave to amend. Because the motion for judgment on the pleadings as to the sixth cause of action is granted with leave to amend, the motion to strike punitive damages is denied as moot.

CONCLUSION

FCA’s motion for judgment on the pleadings as to the first and second causes of action on statute of limitations grounds is denied. FCA’s motion for judgment on the pleadings as to the sixth cause of action on the ground of a failure to state sufficient facts is denied.

FCA’s motion for judgment on the pleadings as to the third cause of action for failure to state sufficient facts is granted with leave to amend. FCA’s motion for judgment on the pleadings as to the fourth and sixth causes of action on statute of limitations grounds is granted with leave to amend. The court does not grant leave to add any new parties or causes of action. (*Zakk v. Diesel* (2019) 33 Cal.App.5th 431, 456.) The motion to strike is denied as moot.

Any amended pleading must be filed and served no later than September 11, 2026.

The court will prepare the order.

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